

Premveer Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 9 May 2023 · 2023:AHC:99882-DB · WRIT - C No. - 23524 of 2011 · **Writ dismissed for want of prosecution; theft-assessment recovery not decided.**

HEADNOTE

Writ challenging a demand and Recovery Citation dated 14 February 2011, said to rest on a 28 November 2009 checking for alleged theft of electricity without following the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, was kept pending from May 2011. Licensee's counsel stated that a provisional assessment had been made; that no objections were received, so it was treated as final; and that no specific order of final assessment had been passed. The petitioner said the absence of a specific final order deprived him of an appeal under Section 127 of the Electricity Act, 2003. The Court held the matter required consideration, issued notice, and stayed recovery subject to a without-prejudice deposit of Rs 71,000. On 9 May 2023 none appeared even in the revised call. The writ was dismissed for want of prosecution. The Court did not decide whether treating the provisional assessment as final was lawful, the Section 127 point, or the validity of the citation.

FACTUAL SUMMARY

Premveer Singh challenged a demand and Recovery Citation dated 14 February 2011 issued after a checking on 28 November 2009 on alleged theft of electricity. He contended that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 had not been followed. Counsel for respondent no. 4 stated that a provisional assessment had been made on that checking; that no objections were received, so it was treated as final and demand was raised; and, on the Court's query, that no specific order of final assessment had been passed. The petitioner said that deprived him of an appeal under Section 127 of the Electricity Act, 2003. The Court issued notice and stayed recovery provided he deposited Rs 71,000 without prejudice. After further listings, none appeared even in the revised call on 9 May 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-assessment recovery citation; writ dismissed for want of prosecution

QUESTION

Whether recovery on a theft-assessment citation said to rest on a provisional assessment treated as final, without a specific final assessment order, may proceed when none appears for the petitioner even in the revised call?

HOLDING

On 19 May 2011, recording the petitioner's case that a demand and Recovery Citation dated 14 February 2011 had been raised on alleged theft of electricity without following the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, and the licensee's statement that a provisional assessment after the 28 November 2009 checking had been treated as final because no objections were received and that no specific order of final assessment had been passed, the Court held the matter required consideration, issued notice pending admission, and stayed recovery on the citation provided the petitioner deposited Rs 71,000 within four weeks without prejudice. On 9 May 2023 none appeared for the petitioner even in the revised call, and the writ was dismissed for want of prosecution. Those Code questions, the Section 127 point, and the citation were not decided. ¶ orders of 19.5.2011 and 9.5.2023

FLAG Thin procedural disposal. Order-sheet of six listings (22.4.2011–9.5.2023). Coram is the disposing bench of 9.5.2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.). The Court never numbered a Code clause; the petitioner invoked the Act and Code generally for alleged theft of electricity, and Section 127 by number. Keyed to Clause 8.1 as the theft-assessment procedure that treating a provisional assessment as final matches. The 19.5.2011 stay was interlocutory and auto-vacating on default in the deposit.

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance

Writ challenging a 14.2.2011 recovery citation, kept pending after the licensee admitted that a provisional theft assessment had been treated as final without a specific final order, was dismissed for want of prosecution when none appeared even in the revised call; the citation, Code procedure, and Section 127 point were not decided. ¶ [order of 9.5.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND AND RECOVERY CITATION DATED 14 FEBRUARY 2011 FOR ALLEGED THEFT OF ELECTRICITY COMPLIED WITH THE ELECTRICITY ACT, 2003 AND THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petitioner's case on 19.5.2011; not decided. ¶ [order of 19.5.2011](#)

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT COULD BE TREATED AS A FINAL ASSESSMENT BECAUSE NO OBJECTIONS WERE RECEIVED, WITHOUT A SPECIFIC ORDER OF FINAL ASSESSMENT

Licensee's instructions of 19.5.2011 admitted that no specific final assessment order had been passed; the Court said the matter required consideration but did not decide it. ¶ [order of 19.5.2011](#)

NOT DECIDED — WHETHER THE ABSENCE OF A SPECIFIC FINAL ASSESSMENT ORDER DEPRIVED THE PETITIONER OF AN APPEAL UNDER SECTION 127 OF THE ELECTRICITY ACT, 2003

Raised on 19.5.2011; not decided. ¶ [order of 19.5.2011](#)

NOT DECIDED — VALIDITY OR QUANTUM OF THE THEFT ASSESSMENT AND OF THE RECOVERY CITATION DATED 14 FEBRUARY 2011

The 19.5.2011 stay was interlocutory and without prejudice; the petition was later dismissed for want of prosecution.

¶ [orders of 19.5.2011 and 9.5.2023](#)